# ORDINANCE NO. 572

## AN ORDINANCE ALLOWING STATUTORY PROVISIONS FOR RETIREMENT FOR CITY CLERK AS SET FORTH IN ORDINANCE 545 WITHIN THE CITY OF RECTOR, ARKANSAS

WHEREAS, Arkansas Code Annotated and the State of Arkansas have statutory provisions for Elected Officials; and

WHEREAS, the City of Rector, in 2010 passed Ordinance 545 allowing for elected officials to receive statutory retirement or opt in to the Arkansas Public Retirement System, and

WHEREAS, current City Clerk began her position on January 1st 2013, and at said time, chose to participate in the Arkansas Public Retirement System, and

WHEREAS, in connection with Exhibit A, the Arkansas Public Retirement System has *now* indicated that the City Clerk is not eligible for participation in the Arkansas Public Retirement System due to her wage amount not meeting the minimum threshold, and

WHEREAS, in consideration for the reliance by the City Clerk that she would be provided retirement in said position, but the amounts appropriated for said position failed to be adequate for the Arkansas Public Retirement system participation, the City Council is considering this matter to provide due retirement provisions, and

WHEREAS, due to her detrimental reliance upon the legal right to participate in one of two retirement systems, and

WHEREAS, it has been determined that the City of Rector shall allow such retirement for the City Clerk as provided under previously passed Ordinance 545.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS:

SECTION 1. It was previously determined that effective December 15, 2010, the City of Rector will provide statutory retirement for the elected position of City Clerk/Treasurer, as stated in ACA Sec. 24-12-127, if said individual does not participate in the APERS retirement system.

SECTION 2. The City Clerk has served in her position for a period of 10 years and is eligible under Ark. Code Annotated Section 24-12-127.

SECTION 3. The City Clerk shall be allowed statutory retirement as set forth in Ark. Code Ann. Section 24-12-127 and this Ordinance shall be effective retroactive to the date the Clerk took office.

SECTION 4. That due to ineligibility of the City Clerk to receive APERS retirement benefits, that the City Clerk and the City shall allow all paid in contributions that were submitted to the Arkansas Public Retirement System to be turned over to the City of Rector and placed in City General.

SECTION 5. All Ordinances and parts of Ordinances in conflict within the provisions of this Ordinance are hereby repealed. Unless specifically amended herein, all other portions of Ordinances shall remain in full force and effect.

SECTION 6. This ordinance shall become effective December 1st, 2022 and shall only apply to the above elected official currently serving.

EMERGENCY CLAUSE. It is determined by the City of Rector due to the need for matters to be resolved in the coming months, and an emergency is declared to exist and this ordinance shall be in full force and effect upon its passage

PASSED AND APPROVED on this 7th day of November 2022.

Teresa L. Roofe
Mayor Teresa Roofe

ATTEST:

Shelia Dale
City Clerk, Shelia Dale